

25STCV18936 25STCV18936

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Case Number: 25STCV18936 Hearing Date: August 7, 2026 Dept: 414

25STCV18936 Gonzalez, et al. v. Nissan North America, Inc.

Friday, August

7, 2026

[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION TO COMPEL INITIAL DISCLOSURES AND REQUEST FOR MONETARY SANCTIONS PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE § 871.26 (3235)

I.

BACKGROUND

This

action arises from alleged violations of the Song Beverly Consumer Warranty Act in connection with a warranty contract issued by Defendant manufacturer for a 2022 Nissan Rogue.

II.

LEGAL STANDARDS

The

statute at issue, which became effective January 1, 2025, and applies to this case, requires both parties to disclose documents 60 days after the answer or responsive pleading. (Code Civ. Proc., § 871.26(b); (h)(1). Plaintiff met and conferred by email, however, Defendant did not comply. (Hill decl., Ex. 1.)

The

court “shall impose” sanctions of \$2,500 against the Defendant’s attorney to be paid within 15 business days for failure to comply with the document production requirements unless good cause is shown. (Code Civ. Proc., § 871.26 (j)(1).)

III.

ARGUMENTS

Plaintiff

argues Defendant failed to disclose initial documents as required by statute which were due on December 13, 2025. Plaintiff asks for an order compelling Defendant’s production of documents and issuing mandatory sanctions of \$2,500 against Defendant, Nissan North America, Inc.

Defendant

states that the disclosure was due October 15, 2025, however, the parties agreed to suspend their mutual obligations temporarily while the parties pursued informal resolution of this action.

Following

receipt of this motion, Defendant prepared and served initial disclosures and document production on June 23, 2026. Defendant contends there is nothing for the Court to compel. Defendant asserts that Plaintiff improperly expands the scope of documents required to be produced.

Plaintiff

did not file a reply brief.

IV.

DISCUSSION

There

is no record of an agreement to suspend disclosures. Defendant refers to an email exchange submitted with the motion which does not document an agreement to pause disclosure obligations. (Hill decl., Ex. 1.) Rather, Plaintiff’s counsel informed that Defendant’s initial disclosures were past due in 463 cases. (Id.) Moreover, nothing in the statute permits the parties to avoid their mandatory obligations by stipulation.

Defendant

has not shown good cause for the delay. Defendant has since complied with its

obligations. (Sweeney decl., Ex. A, B.). Defendant contends that imposition of sanctions is not mandatory because there is an exception: "unless the party failing to comply shows good cause." (Opp.

8:1-4; Cal. Code Civ. Procedure §871.26 (j).) Defendant has not shown good cause. Additionally, imposition of sanctions is mandatory regardless of whether Defendant was acting in good faith. Contrary to Defendant's contention, the statute does not require Plaintiff to show prejudice in support of the sanction request.

V.

CONCLUSION

As

Defendant has since untimely served its initial disclosures of documents, an order compelling their production is no longer necessary. However, the court imposes sanctions of \$2,500 against Defendant's attorney payable to Plaintiff within 15 business days. (Cal. Code Civ. Procedure § 871.26(j)(1).)